

25VECV05964 25VECV05964

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Tentative Ruling

Sahagian v. Hyundai Motor America,

Case no. 25VECV05964

Hearing date July 30, 2026

Defendant

Hyundai's Demurrer to the First Amended Complaint

Plaintiff

Sahagian sues defendant Hyundai Motor America for violations of the Song-Beverly Act. Defendant demurs to the second, third and fifth causes of action in the first amended complaint. Plaintiff opposes.

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts," Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. Doheny Park Terrace Homeowners Ass'n., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.

Defendant

demurs to the second cause of action for violation of Civ. Code §1793.2(b). "Where those service and repair facilities are maintained in this state and service or

repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay." Civ. Code §1793.2(b).

Defendant

argues plaintiff failed to plead necessary material facts with sufficient specificity to sustain a section 1793.2(b) claim. "[S]tatutory causes of action must be pleaded with particularity." *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790. Plaintiff argues the broad allegations of the FAC sufficiently acquaint defendant with the nature of the claims.

The

FAC alleges plaintiff "presented the Vehicle to [defendant]'s authorized repair facilities for repairs on multiple occasions during the warranty period, but continued to experience symptoms of the defects and non-conformities." FAC, para. 13. The FAC alleges defendant "failed to commence the service or repairs within a reasonable time and failed to service or repair the Vehicle so as to conform to the applicable warranties within 30 days, in violation of Civil Code section 1793.2, subdivision (b)." *Id.* at para. 40. The FAC fails to allege when or to which location(s) plaintiff presented the vehicle for repair, the complained-of issues or the number of times plaintiff presented the vehicle. The FAC is insufficient and lacks the particularity required to allege a 1793.2(b) claim. SUSTAINED with 15 days leave to amend.

Defendant

demurs to the cause of action for violation of Civ. Code §1793.2(a)(3). "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall:... (3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." Civ. Code §1793.2(a)(3). Defendant argues plaintiff failed to plead the necessary material facts with sufficient specificity to sustain a section 1793.2(a)(3) claim. Plaintiff argues the complaint's allegations are "enough to allow [defendant] to review its records and prepare its defense." *Opp.*, 1:10-11. This is not the

standard for statutory claims.

The

FAC alleges “[defendant] failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” FAC, para. 45. The FAC contains no allegations as to what facility or facilities plaintiff is referring, nor allegations specifying what service literature or replacement parts ought to have been supplied. Generalized allegations do not satisfy the particularity requirements for statutory causes of action. *Covenant Care*, supra. Plaintiff must plead, at a minimum, dates of attempted service, service location(s) and what literature or parts were improperly withheld to sustain a Civ. Code §1793.2 claim. SUSTAINED with 15 days leave to amend.

Defendant

argues the breach of warranty claims are untimely and asserts allegations of equitable tolling are improper. See FAC, paras. 30-31. The court sustained demurrers to the second and third causes of action with leave to amend, and the remaining demurrer is not against a warranty cause of action. Thus, the court declines to consider general equitable tolling arguments at this time.

Defendant

demurs to the claim for fraudulent inducement – concealment. Fraud, including negligent misrepresentation, must be pled with specificity. *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184. Plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the names of the person(s) who made the representation(s), their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote and when the representation was made. *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793, citing *Tarmann v. State Farm Mut. Auto Ins. Co.* (1991) 2 Cal.App.4th 153, 157.

The

FAC alleges defendant knew the lithium-ion battery was defective and intentionally failed to disclose this fact to plaintiff. FAC, para. 55. However, the FAC fails to allege with whom plaintiff spoke with at the dealership, their alleged authority to speak on defendant's behalf, when, where and the substance of any such communications. This is insufficient.

Unlike

most causes of action where there is a “policy of liberal construction of the pleadings,” claims involving fraud require particularity, that is, “pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73. The particularity requirement applies to every individual element of a claim sounding in fraud. See *Cooper v. Equity General Ins.* (1990) 219 Cal.App.3d 1252, 1262. Failing to allege the substance, when, where, by whom or by what authority are fatal to the fraud claim. SUSTAINED with 15 days leave to amend.

Defendant

separately argues the fraud claim is barred by the economic loss rule. As the court sustained the demurrer to the fifth cause of action, the economic loss rule argument will not be addressed at this time.